

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN TAIWAN

Complete Community Opposition How-To

This guide uses the Taiwanese terms and bodies you'll actually run into — the EIA and its review committee, the administrative courts, the citizen referendum, the Control Yuan — and explains each in plain words the first time. Taiwan is a vibrant democracy where these levers genuinely work.

INTRODUCTION & FRAMEWORK

In 2011, Taiwan's government was preparing to build the **Kuokuang petrochemical complex** — an eighth naphtha cracker — on the tidal wetlands at the **Zhuoshui River estuary**, home to an endangered population of white dolphins and to oyster farmers who had worked the flats for generations. What stopped it was a movement unlike any the island had seen: poets and film directors, scholars and students, farmers and fishers, all against one project — and, remarkably, a **citizen land-buying campaign**, in which ordinary people bought up tiny plots of the wetland to make it harder to seize. Under that pressure, in 2011 **the developer withdrew and the government abandoned the project**. The estuary and its dolphins were saved. This was not a moral victory or a delay — it was a major industrial project stopped cold by an organised public.

Taiwan proves the pattern again and again. The **Lungmen (Fourth) Nuclear Power Plant** was halted in 2014 after mass protests and a hunger strike, and sealed rather than fuelled. Communities here have genuinely cancelled major industrial and energy projects — which makes Taiwan one of the most hopeful settings in this guide.

Taiwan gives communities a genuinely strong toolkit: an **environmental impact assessment (EIA)** decided by a committee that includes **independent experts** who can reject a project; **administrative courts** that have **revoked EIA approvals**; a **citizen referendum**; the scrutiny of the **Control Yuan**, the **legislature**, and a vigorous **free press**; and a tradition of **National Trust-style land-buying**, as at Kuokuang, where ordinary people bought tiny plots of wetland to make it harder to seize. Protest, petition, and litigation are fully lawful, and this is a rights-respecting democracy — so, unlike in much of this guide, you can organise openly. But these tools have real limits, and this guide states them plainly: not every fight is won, even here. The **Datan algal-reef LNG terminal** drew a fierce campaign, a lawsuit over its flawed environmental review, and a **national referendum** — yet the referendum fell short, and the project was redesigned and built. Taiwan shows both what a sophisticated, determined movement can win and where a determined, state-backed project can still proceed. Which you face shapes your strategy — but in either case the levers are real and worth using to the full.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of decisions and dependencies, and a chain breaks at its weakest link. A Taiwanese project needs its **EIA** approved by a committee with independent experts; it needs to survive the **administrative courts**, which have revoked such approvals; it needs a public that has repeatedly refused to give its acquiescence; it may face a **referendum**; and it must avoid the scrutiny of the **Control Yuan**, the legislature, and the press. Every one of those is a link you can grab. **Find the one**

closest to your hand and pull.

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If the EIA is flawed, the independent experts on the committee — and the administrative courts — genuinely bite** — courts here have revoked EIA approvals outright.
- **If public feeling is strong, mobilisation and the referendum are real levers** — Taiwan's public has repeatedly refused major projects.
- **On Indigenous land, consent and land rights add a further lever** — cement and other mines on Indigenous territory face this.
- **If the state is determined, even here a project can proceed** — the Datan lesson — so combine every lever and count delay, revocation, and redesign as wins.

Read the whole guide once before you move. Two habits run through it: **use the levers the democracy gives you** — the EIA committee, the courts, the referendum, the Control Yuan — and **run every front at once**: the documents, the EIA, the courts, the movement, the press. That's how Kuokuang was stopped.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The central gate is the **EIA**, reviewed by an **Environmental Impact Assessment Review Committee** under the environmental authority — a committee that, importantly, includes **independent experts and scholars** and can **reject a project or send it to a demanding second-stage review**. Sector and local authorities issue other permits; **local governments** hold land-use powers; and on Indigenous land, **Indigenous consent and land rights** apply. The **administrative courts** review the legality of approvals. Know which decision you can contest, and aim there.

How a Project Moves — and Where You Jump In

The EIA and the committee. The developer's EIA goes to the review committee, with public participation; a project with serious impacts can be pushed to a rigorous **second-stage review**. *Your opening — and it arms every later step:* take part, submit expert objections, and press the independent committee members, who can reject or toughen the review.

The approval. The committee approves (or rejects). *Your opening:* a flawed approval can be **revoked by the administrative courts** — a proven Taiwanese win.

The referendum. For a big enough question, a **citizen referendum** can be triggered. *Your opening:* a national or local vote (as at Datan, though that one fell short).

Construction. *Your opening:* breaches, and Control Yuan and legislative scrutiny.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — company and, often, state-enterprise records set the exposure. **What it still needs** — the EIA not approved or under challenge, permits not granted, financing not closed: whatever's missing is the soft spot. **Who's paying** — financiers and, for state-backed

projects, the public purse, whose spending the Control Yuan and legislature scrutinise.

Who's Supposed to Be Watching

Each is an ally or an arena. The **EIA review committee**, with its independent experts, runs the assessment and can reject a project. The **administrative courts** revoke unlawful approvals — the proven lever. The **Control Yuan** investigates official failings and can censure. The **legislature** scrutinises and can act. The **electorate** can decide by referendum. And Taiwan's **rich civil society, its scholars and cultural figures, its Indigenous communities, and a free press** are the forces that reach furthest — the combination that beat Kuokuang.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether the EIA is flawed, whether independent experts and the courts engage, how strong public feeling is, and how determined the state is.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Objections to the EIA committee	20–40%	during review	low	Rejection, second-stage review, or conditions
Administrative court challenge	30–55%	1–3 yr	low–mod	EIA approval revoked (proven)
Independent-expert / second-stage review	25–50%	months–yr	low	Project rejected or heavily conditioned
Citizen referendum	25–50%	months–yr	mod	A question decided by the vote (Datan fell short)
Control Yuan / legislative scrutiny	20–45%	months–yr	low	Censure; pressure; delay
Mass mobilisation + land-buying	30–55%	months–yr	low–mod	Withdrawal (Kuokuang)
Everything together (flawed EIA, public roused)	45–65%	1–3 yr	low–mod	Withdrawn, revoked, delayed, redesigned
Everything together (state-backed, clean process)	25–45%	1–3 yr	low–mod	Delayed, conditioned, redesigned

The levers that move the needle most are the **administrative courts** (which revoke EIA approvals), the **independent experts on the EIA committee**, and **mass mobilisation**, backed by the referendum and the press. Kuokuang shows the ceiling (a petrochemical complex withdrawn). Datan is the honest floor (a fierce campaign that still saw the project redesigned and built). Most fights sit between — and revocation, a second-stage review, delay, and redesign all count as wins.

On cost: participating, organising, and using the free press are cheap; scholars and NGOs bring the expert critique; the administrative courts are accessible; and land-buying, though it costs money, is a distinctively Taiwanese tactic that has worked.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this EIA, this flaw, this vote — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the company or state enterprise, its owners, its financiers.

2. Where is it, and what does it touch? Get the footprint and lay it over wetlands and estuaries, a coast or reef, Indigenous land, farmland and fisheries, communities. **A wetland, a reef, or Indigenous land are your sharpest levers**, so this map is your most important document — Kuokuang turned on an estuary and its dolphins.

3. What stage is it at, and what's the next deadline? Is the EIA in review (first or second stage)? Has it been approved (opening the courts)? Could a referendum be triggered? These openings are time-bound.

4. What does it still need that it lacks? An EIA not approved, permits not granted, financing not closed. The missing piece is the soft spot.

5. Who else is affected, and who already opposes it? Neighbouring communities, fishers and farmers, scholars, cultural figures, Indigenous communities, national NGOs. Kuokuang drew in poets, directors, and students.

What this looks like in real life. A community learns a petrochemical or LNG project is planned on its wetland or reef. The five questions yield: a company or state enterprise behind it; a site harming a wetland or reef (the sharp levers); an EIA in review; a project still needing approval; and a coalition of fishers, scholars, and cultural figures. That's the Kuokuang pattern — press the independent experts, ready the courts, consider land-buying and a referendum, and rouse the public.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and Kuokuang was won partly on the science of what the estuary would lose. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the EIA report, the committee's records, the approval and conditions, the permits, the ecological studies. Taiwan's open-government rights let you demand what isn't public. Then read the EIA hard for flaws — an understated impact on the wetland or reef, an ignored alternative, a health or ecological effect brushed over.

Layer two: the ground truth. Dated, located photographs and video of the site, the wetland, the reef, the wildlife (the white dolphins, the algal reef) — baseline images before any damage most of all — and the testimony of affected fishers and residents.

Layer three: the map of ecosystems and rights. Lay the project over the wetland, the reef, Indigenous land, and fisheries, so each lever is visible. Walking into the EIA committee or the administrative court with the EIA, the approval, and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The EIA report, the committee's records, the approval and conditions, the permits, the ecological studies** — from the environmental authority; force out the rest under open-government rights (8A).

- **Local land-use records** — from the local government.
- **Ownership and financing** — company and state-enterprise records.
- **The ecosystem-and-rights map** — the wetland, reef, Indigenous land, and fisheries, laid over the site.
- **Dated site evidence and named testimony** — photographs marked with date and place, and fishers' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Kuokuang's coalition of poets, scholars, farmers, and citizen land-buyers is a model of breadth. Build yours in four moves.

Start with a tight core. The fishers and neighbours most affected, the people who know the wetland and coast, a few tireless organisers, and respected local figures.

Build a broad, creative coalition. Taiwan's great wins draw in scholars, writers, film-makers, and students alongside the affected communities — a breadth that makes a project a national cause. Hold events where people see (and feel) what's at stake — the estuary, the dolphins, the reef.

Use the distinctive tactics — land-buying and Indigenous rights. Consider a **National Trust-style land-buying campaign** to complicate seizure, as Kuokuang's opponents did. Where the project is on **Indigenous land**, centre Indigenous consent and land rights, at the community's direction.

Bring in the scholars and lawyers — early. Reach the scientists who can dismantle the EIA and the public-interest lawyers who win revocations in the administrative courts. In an open democracy, you can build this in the open.

Build to last. Taiwanese fights can run for years. Build clear roles, a shared archive, a way to decide together, and a plan for the toll — and keep the coalition broad and creative, which is Taiwan's winning signature.

STEP 4: LEGAL CHALLENGES, THE COMMITTEE & THE REFERENDUM

Law is one of Taiwan's sharpest levers, because independent experts sit on the EIA committee and the courts genuinely revoke unlawful approvals.

Work the EIA Committee — and the Independent Experts

Everything downstream is stronger if you engaged the **EIA review committee**, whose **independent experts and scholars** can reject a project or push it to a demanding **second-stage review**. Submit rigorous, expert objections; the committee is a genuine decision-point, not a rubber stamp, and a second-stage review can sink a weak project.

The Administrative Courts — the Proven Lever

If the EIA is approved unlawfully, challenge it in the **administrative courts**, which have **revoked EIA approvals** — a proven Taiwanese win (the Datan campaign secured a court finding on its flawed review). Grounds include a defective assessment, an ignored impact, and a flawed committee process. This is your central legal route.

The Referendum, Indigenous Rights, and the Control Yuan

For a big enough question, a **citizen referendum** can put the project to a vote (national at Datan, though it fell short; local votes are also possible). On **Indigenous land**, consent and land rights are a further lever. And the **Control Yuan** can investigate official failings and censure, while the **legislature** can scrutinise and act. Match the tool to the fight: the committee and courts for the EIA, the referendum for a public verdict, Indigenous rights where they apply, the Control Yuan for official misconduct.

The Honest Limits

Straight talk: the committee, the courts, and the referendum are real and have stopped major projects, but litigation is slow, a determined state-backed project can still proceed (Datan), and a referendum can fall short. So use the strong tools — the committee and its experts, the administrative courts, the referendum, Indigenous rights, the Control Yuan — but pair them with the broad coalition and the press, and count a revocation, a second-stage review, delay, and a redesign as wins alongside a withdrawal.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A document becomes a legal flaw. Not "the project is bad" but *"the EIA understated the destruction of the wetland and its dolphins — grounds to reject it, or for the court to revoke the approval."*

An ecosystem becomes a cause. *"The estuary, the reef, the dolphins — irreplaceable, and worth more than a cracker."*

A question becomes a vote. *"This should be decided by the public — as Datan was put to a referendum."*

The harm becomes a national story. *"The coast and the creatures our island is known for — sacrificed for one more industrial complex."*

Match it to the venue: the objections to the EIA committee; the flaws to the administrative court; the public question to a referendum; the ecosystem and the human story to the press.

STEP 5: MEDIA STRATEGY

In Taiwan, publicity and cultural resonance are powerful levers — Kuokuang became a national cause carried by poets and film-makers. A free press, engaged scholars, and cultural figures make the media front central.

Lead with people and place, not procedure. Not "the EIA was deficient" but "the coast and the creatures our island is known for — sacrificed for one more industrial complex." Use your strongest material: dated photographs, the ecology of the wetland or reef, the cultural voices, and any court win banked.

Work several audiences at once. Local and national press build political pressure; scholars and cultural figures amplify and lend authority; international media reach the project's financiers and the world's interest in Taiwan's biodiversity. Make it easy: captioned photos, accurate summaries, a map, strong and creative voices.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And keep the coalition broad and the message positive about what's being saved, which is Taiwan's winning register.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Open-government request (to the environmental authority).

Subject: Request for the EIA and committee records — [project].

"Under the open-government rules, we, residents of [place], request the EIA report, the review committee's records, the approval and conditions, and the ecological studies for [project] at [location]. [Contact.]"

8B — Objection to the EIA committee.

Subject: Objection — EIA review of [project].

"We, residents of [place], object to [project]: [it destroys this wetland / reef / dolphin habitat; the assessment ignored alternatives and impacts]. We ask the committee to reject it or require a second-stage review. [Attach expert evidence.]"

8C — Administrative court challenge (to a lawyer).

Subject: Challenge to the EIA approval — [project].

"We instruct you to challenge the EIA approval for [project] in the administrative court, on the grounds that [the assessment was defective / the committee process was flawed], seeking revocation. [Attach the approval, the EIA and our evidence.]"

8D — To scholars / a public-interest NGO.

Subject: Request for expert and legal support — [project].

"Our community faces [project], which threatens [a wetland / reef / Indigenous land]. We've gathered [the EIA, ecological studies, photographs] and believe there are grounds before the committee and the courts. We ask for your expertise and to work as partners. [Contact and evidence summary.]"

8E — Launching a land-buying / referendum effort (to the community).

Subject: Two ways to protect [the place].

"To protect [the wetland / coast] from [project], we can buy up small plots to complicate seizure — as Kuokuang's opponents did — and, for a big enough question, gather signatures for a referendum. Please join the land-buying and the signature drive. [Contact.]"

8F — To a financier.

Subject: Environmental and legal risk in [project].

"We understand your institution may be financing [project] at [location], which [destroys a protected wetland / reef] and faces EIA and court challenge. We ask you to weigh this against your own standards. [Contact and evidence summary.]"

8G — Letter to the press.

Subject: [Community] moves to protect [estuary / reef / coast] from [project].

"For generations the people of [place] have lived from [the estuary / the coast] at [location] — home to [the white dolphins / the algal reef]. Now [project] threatens it. We can provide photographs, ecological studies, a map and interviews. [Contact.]"

8H — Rallying the community.

Subject: We can stop this — here's how.

"[Project] threatens [our wetland / reef / coast]. At the Zhuoshui estuary, poets, scholars, farmers, and citizens who bought up the land stopped a petrochemical giant. With the EIA committee, the courts, a referendum, and a broad coalition behind us, we have a real chance. Please join us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Nail down the project and its footprint, and look for the wetland, reef, or Indigenous-land levers.** These are your sharpest.
2. **Object to the EIA committee (8B), pressing the independent experts and asking for a second-stage review.**
3. **Request the documents (8A), and get scholars to dismantle the EIA.**
4. **Photograph everything, with dates and places.** Baseline images before any damage matter most.
5. **Get a lawyer for an administrative-court challenge (8C)** — the proven route to revoke an approval.
6. **Build a broad coalition, consider land-buying and a referendum, and go public (8E/8H).** Kuokuang was won this way.

Even lean, those six use the democracy's levers, build the record, hit the committee and the courts, and rouse a broad public.

WHEN THE SYSTEM IS TILTED

Taiwan's tools are real and strong, but even here the field can tilt, and you should plan for it.

When the state backs the project. Datan shows a determined, state-backed project can proceed. Don't fold: press the courts, the independent experts, and the referendum, keep the coalition broad, and aim for revocation, redesign, and delay as real wins.

When a referendum falls short. A vote can be lost (as at Datan). Keep the legal and committee fronts running regardless — the courts revoked nothing less than EIA approvals in parallel fights.

When it's on Indigenous land. Centre Indigenous consent and land rights, at the community's direction — a distinct and powerful lever.

What still works, and it's a lot. Independent experts who can reject a project; administrative courts that revoke approvals; a referendum; the Control Yuan; and a broad, creative coalition that has stopped

petrochemical and nuclear projects.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Taiwan is a well-governed democracy, but the closeness of powerful industrial and state-enterprise interests to a decision can bend it, and where it does, you expose it.

How to spot it. Approvals against the committee's own experts; an EIA written for the proponent; a committee process rushed or stacked; benefits to the connected while the community carries the harm.

Who's supposed to guard against it. The **Control Yuan** investigates official failings and can censure. The **Agency Against Corruption** and prosecutors handle graft. The **Auditor** examines public money. The **administrative courts** can revoke a tainted approval. And Taiwan's **free, investigative press** has exposed captured projects.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the Control Yuan, the prosecutors, and trusted journalists rather than making accusations you can't back. Pair the exposure with the legal challenge and the public campaign.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; pinning down the ecosystem and rights levers aims it; the broad coalition builds the muscle; the committee and the courts press the case; the referendum and the media raise the cost. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project, its footprint, and any wetland, reef, or Indigenous land; object to the EIA committee and press the independent experts; request the records and get expert critique; photograph the baseline; build a broad coalition and consider land-buying.

In the thick of it (months–years): challenge a flawed approval in the administrative court; push for a second-stage review; run a referendum drive where apt; involve the Control Yuan; open the media front.

The long haul (years): carry the case through the courts; keep the coalition and the attention alive; hold the line for a revoked approval, a rejected or redesigned project, delay, or an outright withdrawal.

FINAL ASSESSMENT

Stopping a destructive project in Taiwan can be done — a coalition of poets, scholars, farmers, and citizens who bought up the wetland stopped a petrochemical complex at the Zhuoshui estuary, and a nuclear plant was sealed rather than fuelled. Hold both truths. Taiwan's tools are real and strong: an EIA committee with independent experts who can reject a project; administrative courts that revoke unlawful approvals; a citizen referendum; the Control Yuan and the legislature; Indigenous land rights; a National Trust-style land-buying tradition; and a free press — all in an open democracy where you can organise in daylight. And the honest limit is real too: a determined, state-backed project, as at Datan, can still proceed.

Here's the discipline that wins. Find the wetland, the reef, or the Indigenous land, and the flaw in the EIA, and gather the science and the record. Press the independent experts on the committee and ask for a second-stage review. Challenge a flawed approval in the administrative court — the proven route to

revocation. Build the broadest, most creative coalition you can, consider land-buying and a referendum, and carry the story to a nation proud of its natural heritage. Count a revoked approval, a rejected or redesigned project, delay, and a withdrawal as wins. That's what the Zhuoshui estuary did — the scholars, the citizens, the courts, and the land itself bought plot by plot. So can you.